

Membership No: 35023306 / Policy No: IA1 1003338

1 March 2021

Dr Richard McLean
2 McCubbin Street
Footscray, VIC 3011

Email: rich@richmclean.com.au

To Dr McLean

Policy: Income Assist cover
Insured Person: Dr Richard McLean
Date of event: November 2020
Policy Commencement Date: 18 November 2020

We write in relation to your complaint to HCF Life on the 17 February 2021 regarding the decision made by the Claim Review committee which upheld the decision to decline your claim.

You state that you are unhappy with the decision on your claim, the subsequent reviewed decision and how that was delivered to you.

We have reviewed all documentation and call wrap ups made between yourself and HCF including your Income Protection Claim form, Doctors form, Self Employed form, Tax return, your Income Assist Policy as well as your email correspondence with our office.

Dr Richard Moore reported in the Income Assist Doctors form dated 2 February 2021 that you suffered from anxiety reaction triggered by legal system response to a court case related your child sexual abuse.

As a result, you suffer anxiety, insomnia, poor concentration, irritability, feelings of being overwhelmed and feelings of guilt and shame.

The Doctor states that your present disability began in August 2018 and that you were first unable to work from November 2020. He is uncertain when you will be most likely able to perform the duties of your occupation, or any other occupation, at least on a part time basis.

We note that your Income Assist Insurance, which commenced on 18 November 2020, is subject to terms, conditions and exclusions including:

4. Benefits

If You are Totally Disabled while Your Policy is in force, during the period that You are Totally Disabled We will pay You the Basic Benefit set out in section below, unless an exclusion applies in section 6.

5. Definitions

Pre-existing Condition means any condition, illness or ailment where the signs or symptoms of

which in the opinion of a medical practitioner appointed by HCF Life, existed at any time before this Policy was entered into, even if a diagnosis had not been made. Sickness means an illness or disease.

6. Exclusions

No benefit is payable to the You if the You are Totally Disabled as a result of:

(g) any mental illness (unless You receive a workers compensation claim as a result of the same condition) including anxiety, stress, depression, psychoses, neuroses, physical fatigue, personality disorder, addiction, psychiatric disorder or any associated disease or disorder;

(h) a Sickness which first became evident within 60 days from the Cover Commencement Date, or a recurrence of the same or a related Sickness; or

(i) a Pre-existing Condition."

After a thorough review by the Internal Disputes Resolution Committee of your claim with all of the above information considered, we have determined that as you are not in receipt of Workers' Compensation for your Mental Illness condition and as your condition commenced prior to the inception of your Income Assist Insurance and is therefore considered a Pre-existing Condition, the original decision to decline your claim has been upheld and we are unable to accept liability to pay your claim.

We are sorry that this may not be the outcome that you were hoping for.

We acknowledge that you are currently experiencing financial hardship. Given your circumstances, we wish to offer you a refund of all premium paid to date on your Income Assist Insurance amounting to \$300.25, thereby cancelling the cover from inception.

Alternatively, should you wish to retain your Income Assist Insurance, you have access to our financial hardship plan where we can defer premium payment for up to 3 months.

Should you wish to make one of the amendments outlined above, please let us know so that we may make the necessary arrangements.

You have the right to copies of the documents and information we relied on in assessing your Complaint. If you wish to obtain copies of any of the documents relied upon in the assessment of your complaint we will provide you (or your doctor, where appropriate) with copies within ten business days, in accordance with the Access to Information section of the Code.

If you remain dissatisfied with the outcome of the review of your Dispute, you may refer your complaint to:

- Online: www.afca.org.au
- Email: info@afca.org.au
- Phone: 1800 931 678
- Mail: Australian Financial Complaints Authority
GPO Box 3
Melbourne VIC 3001;

You have 2 years from the date of this letter to refer your complaint to AFCA, however if you wish to clarify anything contained in this letter or about our process, then please do not hesitate to contact us directly.

Yours sincerely,



Internal Disputes Resolution Committee
HCF Life Insurance
Phone No. 1300 423 5433 (Select Option 2)